Managed IT services agreement MSA-2022-07 – extract

Parties

Kairos IT Services SAS, registered in Grasse under number 823 447 109 ("Kairos"), and Azur Marine Services S.A.M., registered in Monaco under number RCI 09 S 05127 ("the Customer").

Clause 1 – Purpose

Kairos provides managed IT services for the Customer's office at 7 Quai Antoine Ier and for the vessels under the Customer's management, as described in the schedules. The schedules form an integral part of the agreement; in case of conflict, the body of the agreement prevails.

Clause 3 – Customer obligations

The Customer appoints a single point of contact, gives Kairos remote access to the systems in scope and informs Kairos of any change to its infrastructure. The Customer remains responsible for the content of its data and for its licences.

Schedule A – Services

Service desk 08:00-19:00 on business days, monitoring 24/7, backup of office servers, vessel connectivity support (3 vessels), Microsoft 365 administration.

Schedule B – Projects included in the fixed fee

Annual firewall upgrade; migration of on-premises servers to the hosted platform (2026); onboarding of up to 10 new users per year.

Schedule C – Fees

Fixed monthly fee EUR 2,450.00 excluding VAT, payable by direct debit on the tenth day of the month. Additional work only on written order at EUR 100.00 per hour.

Schedule D – Service levels

Priority	Definition	Response	Resolution
P1	Office or vessel without connectivity	30 min	4 h
P2	Service degraded for several users	2 h	1 business day
P3	Single user or request	1 business day	3 business days

Service credits: 5% of the monthly fee per P1 incident resolved late, capped at 20% per month.

Clause 7 – Change requests

Any work outside schedules A and B requires a written change request signed by the customer's Finance Director before work starts. Work performed without a signed change request is not chargeable.

Clause 9 – Invoicing

Kairos invoices the fixed fee on the first day of each month. Disputed invoices are notified in writing within 30 days; the undisputed part remains payable.

Clause 12 – Term

Initial term of 36 months from 01/02/2022, renewed tacitly for 12-month periods unless terminated with 3 months' notice.

Clause 14 – Data protection

Kairos acts as processor within the meaning of Regulation (EU) 2016/679 and of Monegasque Law No. 1.565. Personal data are hosted in the European Union only.

Clause 16 – Liability

Kairos' aggregate liability per contract year is capped at the fees paid during the previous twelve months, except in case of gross negligence or wilful misconduct.

Signatures

For Kairos IT Services SAS: the Managing Director. For the Customer: Claire Martin, Finance Director, on 15/01/2022.